

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005220

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARTHA CARBALLO

vs.

DEFENDANT: THE WOODLANDS STORE
HOLDINGS, INC., ET AL

NATURE OF PROCEEDINGS: MOTION - OTHER: FINAL APPROVAL OF CLASS
ACTION SETTLEMENT AGREEMENT

RULING

On April 17, 2026, the court entered an order preliminarily approving a settlement of class claims for settlement purposes pursuant to Code of Civil Procedure § 382, and preliminary approval of a class action settlement under California's Private Attorney General Act, Labor Code § 2698, et seq.

Defendant stipulated to certification of the Class and PAGA claims for purposes of settlement only.

The court has reviewed the declarations of Tiffany Hyun and Elizabeth Botero on behalf of class counsel, and of the representative Plaintiff, Ms. Carballo, filed in support of final approval and hereby grants the request for FINAL APPROVAL of the class claims and payment distribution.

The court will sign the lodged order.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007753

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOSHUA FOSTER

vs.

DEFENDANT: GOLDEN GATE BRIDGE
HIGHWAY AND TRANSPORTATION
DISTRICT

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Plaintiff Joshua Foster’s motion to transfer venue is DENIED.

FACTUAL BACKGROUND

This action arises out of Plaintiff Joshua Foster’s (“Plaintiff”) employment with Defendant Golden Gate Bridge Highway and Transportation District (“Defendant”). On October 23, 2023, Plaintiff, an African-American male, began working for Defendant as an environmental, health and safety specialist. He alleges he was subject to discrimination and harassment based on race. He also alleges he was retaliated against for raising concerns and filing formal complaints regarding workplace safety violations. Plaintiff was terminated on September 27, 2024.

On September 25, 2025, Plaintiff filed this action. On January 8, 2026, Plaintiff filed his operative First Amended Complaint (“FAC”) alleging the following causes of action: 1) race and national origin discrimination; 2) hostile work environment harassment; 3) failure to prevent and remedy harassment under FEHA; 4) retaliation under Labor Code section 6310; and 5) retaliation under Labor Code section 1102.¹ The FAC alleges that Plaintiff lives in San Rafael and venue is proper in Marin County because Defendant’s principal place of business is located in San Rafael. (FAC ¶¶ 4-5.)

After substitution of new counsel, Plaintiff filed the present motion wherein he seeks to transfer venue to Sacramento County or another neutral county with no relationship to Defendant. (Code

¹ On February 10, 2026, Plaintiff dismissed his 6th cause of action for intentional infliction of emotional distress. On March 3, 2026, the parties filed a stipulation to dismiss the prayer for punitive damages, which the Court entered as an order on March 16, 2026.